



CHAPTER lxxxvii.

An Act to confirm certain Provisional Orders of the A.D. 1910.
Local Government Board relating to the North East
Durham Joint Small-Pox Hospital District the North
East Kent United Districts the Conway and Penmaen-
mawr and the Windsor and Egham Joint Hospital
Districts. [3rd August 1910.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and
the same are hereby confirmed and all the provisions thereof
shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's
Provisional Orders Confirmation (No. 10) Act 1910. Short title.

A.D. 1910.

SCHEDULE.

NORTH EAST DURHAM JOINT SMALL-POX
HOSPITAL DISTRICT.

*North East
Durham
Small-pox
Hospital
Order.*

Provisional Order for altering a Confirming Act.

To the North East Durham Joint Small-Pox Hospital Board ; —

To the Mayor Aldermen and Burgesses of the Borough of South Shields ; —

To the Mayor Aldermen and Burgesses of the Borough of Jarrow ; —

To the Urban District Council of each of the Urban Districts of Felling Hebburn and Southwick-on-Wear ; —

To the Rural District Council of each of the Rural Districts of South Shields and Sunderland ; —

And to all others whom it may concern.

4 EDW. 7.
c. cxix.

WHEREAS by virtue of the North East Durham Joint Small-pox Hospital Order 1904 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1904 (which Order and Act are herein-after respectively referred to as "the Order" and "the Confirming Act") the Borough of Jarrow the Urban Districts of Felling Hebburn and Southwick-on-Wear and the Rural Districts of South Shields and Sunderland constitute the United District called the North East Durham Joint Small-Pox Hospital District (herein-after referred to as "the United District") of which the governing body is the North East Durham Joint Small-Pox Hospital Board (herein-after referred to as "the Joint Board") ;

And whereas it is expedient that the Borough of South Shields should be included in the United District and that the Order should be altered as herein-after provided :

A.D. 1910.

*North East
Durham
Small-pox
Hospital
Order.*

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the Thirtieth day of September One thousand nine hundred and ten (herein-after referred to as "the commencement of this Order") the Confirming Act so far as it relates to the Order shall be altered as follows:—

Art. I. The United District shall be extended so as to include the Borough of South Shields and subject to the provisions of this Order references in the Order to the Constituent Districts shall be deemed to include the Borough of South Shields and references in the Order to the Constituent Authorities shall be deemed to include the Mayor Aldermen and Burgesses of the Borough of South Shields acting by the council.

Extension
of United
District.

Art. II. Article IV. of the Order shall be altered so that the Joint Board shall consist of seven ex-officio members and of nineteen elective members and the ex-officio members shall be the persons described in column 3 of the Schedule hereto and the number of elective members to be elected by each of the Constituent Authorities shall be that set opposite to the name of that constituent authority in column 4 of that Schedule.

Ex-officio
and elective
members of
Joint Board.

Art. III. The Order shall have effect as if the Schedule to this Order were substituted for the Schedule to the Order.

Substitution
of new Sche-
dule.

Art. IV. The provisions of Article XI. of the Order shall apply to the first election by the Council of the Borough of South Shields of the elective members to represent that Council on the Joint Board as if the election related to the filling of a vacancy occurring at the commencement of this Order.

Election of
elective mem-
bers by
council of
borough.

Art. V. Article XX. of the Order shall be altered—

(a) by the omission from subdivision (1) (a) and subdivision (2) of that Article of the words "and the Thirtieth day of September";

(b) by the substitution throughout the Article of the word "year" for the word "half-year."

Art. VI. The Local Government Board upon the application of any of the Constituent Authorities or of the Joint Board may by order adjust as between the Constituent Authorities or as between the Constituent

Adjustment.

[Ch. lxxxvii.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 10) Act, 1910. 1 GEO. 5.]

A.D. 1910. Authorities and the Joint Board any expense or liability incurred by or attaching to the Joint Board before the commencement of this Order or any expense liability or accounts arising out of incidental to or connected with or affected by the inclusion of the Borough of South Shields in the United District or any expense liability or accounts in respect of which doubt or difference may arise after the commencement of this Order.

*North East
Durham
Small-pox
Hospital
Order.*

Short titles. Art. VII. This Order may be cited as the North East Durham Joint Small-pox Hospital Order 1910 and the Order and this Order may be cited together as the North East Durham Joint Small-pox Hospital Orders 1904 and 1910.

The SCHEDULE above referred to.

1.	2.	3.		4.
Name of District.	Name of Urban Sanitary Authority or District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The Borough of South Shields.	The Mayor Aldermen and Burgesses of the Borough of South Shields acting by the Council.	1	The Chairman for the time being of the Health Committee of the Corporation of South Shields.	10
The Borough of Jarrow.	The Mayor Aldermen and Burgesses of the Borough of Jarrow acting by the Council.	1	The Chairman for the time being of the Sanitary Committee of the Corporation of Jarrow.	2
The Urban District of Felling.	The Urban District Council of Felling.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Urban District Council.	1

[10 EDW. 7 & *Local Government Board's* [Ch. lxxxvii.]
1 GEO. 5.] *Provisional Orders Confirmation (No. 10) Act, 1910.*

1.	2.	3.		4.	A.D. 1910.
Name of District.	Name of Urban Sanitary Authority or District Council.	Ex-officio Members.		Elective Members.	<i>North East Durham Small-pox Hospital Order.</i>
		Number.	Description.	Number.	
The Urban District of Hebburn.	The Urban District Council of Hebburn.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Urban District Council.	1	
The Urban District of Southwick-on-Wear.	The Urban District Council of Southwick-on-Wear.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Urban District Council.	1	
The Rural District of South Shields.	The Rural District Council of South Shields.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council.	2	
The Rural District of Sunderland.	The Rural District Council of Sunderland.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council.	2	

Given under the Seal of Office of the Local Government Board
this Seventh day of June One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

A.D. 1910.

BOROUGH OF QUEENBOROUGH
URBAN DISTRICTS OF MILTON REGIS
SHEERNESS AND SITTINGBOURNE
AND
RURAL DISTRICT OF MILTON.

*North East
Kent United
Districts
(Medical
Officer
of Health)
Order.*

*Provisional Order for Union of Districts under Section 286
of the Public Health Act 1875 and for partially
repealing a Confirming Act.*

To the Mayor Aldermen and Burgesses of the Borough of
Queenborough ;—

To the Urban District Councils of Milton Regis Sheerness and
Sittingbourne ;—

To the Rural District Council of Milton ;—

And to all others whom it may concern.

5 EDW. 7.
c. cxi.

WHEREAS by virtue of the Milton and Sittingbourne (Medical Officer
of Health) Order 1905 (herein-after referred to as "the Order of 1905")
which was confirmed by the Local Government Board's Provisional
Orders Confirmation (No. 17) Act 1905 (herein-after referred to as "the
Act of 1905") the Urban Districts of Milton Regis and Sittingbourne
and the Rural District of Milton are united for the purpose of appointing
a Medical Officer of Health and in pursuance of that Order Thomas
Barrett Heggs has with the sanction of Us the Local Government Board
been appointed Medical Officer of Health for the Districts so united
to hold office until the Thirty-first day of March One thousand nine
hundred and thirteen ;

38 & 39 Vict
c. 55.

And whereas the district councils of the five districts which are
named in column 2 of the Schedule to this Order are the local
authorities within the meaning of the Public Health Act 1875 for the
districts named in column 1 of that Schedule and those districts are
situated wholly within the County of Kent ;

And whereas upon consideration of representations made to Us it
appeared to Us that it would diminish expense and otherwise be for
the advantage of all the districts that the district councils so united
as aforesaid and the district councils of the Borough of Queenborough
and of the Urban District of Sheerness should be united for the
purpose of appointing a Medical Officer of Health and We accordingly
in pursuance of Section 286 of the Public Health Act 1875 gave to
each of the district councils named in the said Schedule notice that
We proposed to issue an Order uniting the said five districts for the
purpose of appointing a Medical Officer of Health ;

And whereas notice of objection to the proposal was received within the time fixed by that Section from the district councils of Milton Regis and Sheerness and it is requisite that those districts be included in the Union and We have decided to issue a Provisional Order for the purpose of including them:

A.D. 1910.
*North East
Kent United
Districts
(Medical
Officer
of Health)
Order.*

Now therefore in pursuance of the powers given to Us by Sections 286 and 297 of the said Act and by any other Statutes in that behalf We do hereby order as follows that is to say:—

Art. I. In this Order—

Definitions.

- (1) The expression "the appointed day" means the date of the Act of Parliament confirming this Order;
- (2) The expression "the Schedule" means the Schedule to this Order;
- (3) The expression "the Act" means the Public Health Act 1875;
- (4) The expression "Constituent District" means a district named in column 1 of the Schedule and the expression "Constituent Districts" means all the districts so named;
- (5) The expression "Constituent Authority" means a district council named in column 2 of the Schedule and the expression "Constituent Authorities" means all the district councils so named;
- (6) The expression "the Regulations" means such Regulations as for the purposes of the Order of 1905 or this Order and of Section 286 of the Act have been or may be made by the Local Government Board in pursuance of the said section and for the time being may be in force with respect to the Constituent Districts and the Constituent Authorities.

Art. II. This Order shall come into operation from and after the appointed day.

Commence-
ment of
Order.

Art. III. The Constituent Districts shall be united for the purpose of the appointment of a Medical Officer of Health and a Joint Committee of representatives of the Constituent Authorities shall be constituted for the purposes of this Order and of the Regulations and the Joint Committee shall at their first meeting after the appointed day appoint the said Thomas Barrett Heggs to be the Medical Officer of Health for the Constituent Districts united by this Order until the date when his present appointment expires that is to say until the Thirty-first day of March One thousand nine hundred and thirteen at such salary or remuneration as shall be determined by the Joint Committee with the approval of the Local Government Board Provided that until a Medical Officer of Health is appointed in pursuance of this

Union of
Districts.

[Ch. lxxxvii.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 10) Act, 1910. 1 GEO. 5.]

A.D. 1910. Order Thomas Barrett Heggs shall continue to hold his appointment
North East of and to act as Medical Officer of Health for the districts named in
Kent United the Order of 1905 at the same remuneration and upon the same terms
Districts and conditions and subject to the same regulations liabilities and
(Medical provisions as would have applied if this Order had not been made.
Officer
of Health)
Order.

Constitution of Joint Committee. Art. IV. The Joint Committee shall consist of five ex-officio and sixteen elective members.

Ex-officio and elective members. Art. V.—(1) The ex-officio members of the Joint Committee shall be the persons described in column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities.

Number and qualification of members. (2) The number of members of the Joint Committee to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members.

Rules applicable to the Joint Committee. Art. VI. The rules with respect to the tenure of office of members of the Joint Committee with respect to the supply of vacancies with respect to all other matters connected with incidental to or consequent upon the constitution of the Joint Committee including in relation to their meetings and officers the transaction and management of their business and generally in relation to any purpose of their constitution all matters which are mentioned in Section 286 of the Act and all matters which in the opinion of the Local Government Board may require regulation shall be such as shall be prescribed by the Regulations.

Any such rule may be varied or revoked by the Regulations and except so far as the rule may be so varied or revoked shall have effect as if the rule formed part of this Order.

Apportionment of charge of salary &c. Art. VII. The salary and expenses of the Medical Officer of Health as well as the remuneration of the Clerk to the Joint Committee and any other expenses lawfully incurred by the Joint Committee in relation to the purposes of this Order and of the Regulations shall unless the Local Government Board otherwise by order direct be borne by each Constituent Authority in the proportion which the rateable value of the Constituent District bears to the aggregate rateable value of the several Constituent Districts and for the purposes of this Article the expression rateable value shall include the annual value upon which contributions are received from the Government in respect of non-rateable property in the occupation of the Crown and also the rateable values in each case shown by the valuation lists in force on the Thirty-first day of March next preceding the date at which a payment becomes due.

Art. VIII. The provisions contained in the two General Orders of the Local Government Board dated the Twenty-third day of March One thousand eight hundred and ninety-one issued to Urban and Rural Sanitary Authorities respectively and in any General Order issued by the Local Government Board in substitution for or in amendment or extension of the first-mentioned General Orders shall except so far as those provisions may be inconsistent with this Order apply to the qualification duties and remuneration of the Medical Officer of Health to be appointed in pursuance of this Order and that officer shall also submit to the Joint Committee copies of every general and special report which he makes in regard to the whole or any part of his district In matters not specifically provided for in the said General Orders or in this Order or in the Regulations the Medical Officer of Health shall observe and execute any instructions issued by the Local Government Board and the lawful orders and directions of the Joint Committee applicable to his office.

A.D. 1910.
*North East
Kent United
Districts
(Medical
Officer
of Health)
Order.*
Duties of
Medical
Officer of
Health.

Art. IX. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough then and in every such case the Local Government Board may by order to be published as they direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

Power of Local Government Board to adapt provisions of Order on alterations of Constituent Districts.

Art. X.—(1) If any difficulty arises with respect to any appointment of a Medical Officer of Health by the Joint Committee the Local Government Board may by order make or validate any appointment or do anything which appears to them to be necessary or expedient for facilitating the appointment of the Medical Officer of Health and the Local Government Board may also make any such order as appears to them to be necessary for bringing this Order into full operation.

Settlement of differences

(2) If any question or difference arises as to the interpretation of this Order or of the Regulations or as to the powers duties and proceedings of the Joint Committee or of a Constituent Authority for the purposes of this Order or of the Regulations or as to any other act matter or thing under this Order or the Regulations the said question or difference may on the application of the Joint Committee or of a Constituent Authority be referred to the decision of the Local Government Board and their decision shall be final and conclusive.

Art. XI. The Act of 1905 so far as it relates to the Order of 1905 shall be repealed as from the date of the first meeting of the Joint Committee constituted by this Order.

Partial repeal of Confirming Act of 1905.

A.D. 1910.

North East
Kent United
Districts
(Medical
Officer
of Health)
Order.

Short title.

[Ch. lxxxvii.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 10) Act, 1910. 1 GEO. 5.]

Art. XII. This Order may be cited as the North East Kent
United Districts (Medical Officer of Health) Order 1910.

The SCHEDULE above referred to.

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The Borough of Queenborough.	The Mayor Aldermen and Burgesses of the Borough of Queenborough acting by the Council.	1	The Mayor.	1
The Urban District of Milton Regis.	The Urban District Council of Milton Regis.	1	The Chairman of the District Council.	2
The Urban District of Sheerness.	The Urban District Council of Sheerness.	1	The Chairman of the District Council.	5
The Urban District of Sittingbourne.	The Urban District Council of Sittingbourne.	1	The Chairman of the District Council.	3
The Rural District of Milton.	The Rural District Council of Milton.	1	The Chairman of the Rural District Council or in case of his being an ex-officio member elsewhere described in this schedule then the Vice-Chairman of the Rural District Council.	5

Given under the Seal of Office of the Local Government Board
this Ninth day of June One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

CONWAY AND PENMAENMAWR JOINT
HOSPITAL DISTRICT.

A.D. 1910.

*Provisional Order for forming a United District under
Section 279 of the Public Health Act 1875.*

*Conway and
Penmaen-
mawr Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Conway ; —

To the Urban District Council of Penmaenmawr ; —

To the Rural District Council of Conway ; —

And to all others whom it may concern.

WHEREAS the district councils named in column 2 of the Schedule
to this Order are the local authorities within the meaning of the Public
Health Act 1875 for the districts named in column 1 of that Schedule :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 279 of the said Act and by any
other Statutes in that behalf do hereby order as follows viz. :—

Art. I. In this Order—

Definitions.

- (1) The expression “the appointed day” means the date of the
Act of Parliament confirming this Order ;
- (2) The expression “the Schedule” means the Schedule to this
Order ;
- (3) The expression “the Act” means the Public Health Act
1875 ;
- (4) The expression “Constituent District” means a district
named in column 1 of the Schedule and the expression
“Constituent Districts” means all the districts so named ;
- (5) The expression “Constituent Authority” means a district
council named in column 2 of the Schedule and the
expression “Constituent Authorities” means all the
district councils so named ;
- (6) The expression “the Joint Board” means the governing
body of the United District to be formed in pursuance
of this Order.

Art. II. This Order shall come into operation from and after the
appointed day.

Commence-
ment of
Order.

Art. III. The Constituent Districts shall be formed into a United
District to be called the Conway and Penmaenmawr Joint Hospital
District for the purposes of the provision maintenance and management
for the use of the inhabitants of the Constituent Districts of a hospital
or hospitals for the reception of cases of infectious diseases.

Formation of
district.

A.D. 1910.

Conway and
Penmaen-
mawr Order.

Constitution
of governing
body.

Ex-officio
and elective
members.

Number and
qualification
of elective
members.

Disqualifica-
tions for
members.
56 & 57 Vict.
c. 73.

Date of first
election.

Notification
to Local
Government
Board of
members
first elected.

Tenure of
office of
members.

[**Ch. lxxxvii.**] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 10) Act, 1910. 1 GEO. 5.]

Art. IV. The Joint Board shall consist of three ex-officio and eleven elective members and shall be called the Conway and Penmaenmawr Joint Hospital Board.

Art. V. The ex-officio members shall be the persons described in column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities.

Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members :

Provided that one of the members elected by the Rural District Council of Conway shall be chosen from amongst the Councillors representing the Parishes comprised in the Rural District of Glan Conway.

Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board.

Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of the meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority.

Art. IX. The clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board.

Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Board whichever shall first happen :

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall subject

to the provisions of Article VII. of this Order be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

A.D. 1910.
*Conway and
Penmaen-
mawr Order.*

Art. XI. Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy happens at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board determine and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority and the clerk shall forthwith notify in writing to the clerk to the Joint Board the names address and occupation of the person elected to fill the said vacancy.

Supply of
vacancies.

Art. XII.—(1) The time and place of holding the first meeting of the Joint Board shall be fixed by the Local Government Board and the subsequent ordinary meetings of the Joint Board shall be held at such times and places as the Joint Board may appoint and at all meetings of the Joint Board five members shall constitute a quorum.

Meetings.

(2) An extraordinary meeting shall be summoned by the clerk to the Joint Board when a requisition for that purpose is addressed to him by the chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at the extraordinary meeting.

(4) Notices of all meetings of the Joint Board shall be delivered or sent by post so as to reach the last known place of abode or business in England of each member of the Joint Board three clear days before the day of meeting or at such earlier time as the Joint Board direct.

(5) The Joint Board may appoint committees consisting of members of the Joint Board for the exercise of any powers which in the opinion of the Joint Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the Joint Board be submitted to the Joint Board for approval Provided that a committee so appointed shall in no case be authorised to borrow money or to issue any precept for contributions or to enter into any contract and any such committee shall be subject to the provisions of Part IV. of the First Schedule to the Local Government Act 1894 so far as they are applicable.

Committees.

Art. XIII. The Joint Board shall at their first meeting or at an adjournment thereof and thereafter as occasion requires appoint a chairman (who shall subject to the provisions of Articles VII. and X.

Appointment
and remun-
eration of
officers.

[Ch. lxxxvii.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 10) Act, 1910. 1 GEO. 5.]

A.D. 1910. of this Order continue chairman for such period not exceeding three
Conway and years as may be determined by the Joint Board at the time of his
Penmaen- appointment) a treasurer and a clerk and they may appoint one or
mawr Order. more medical officers who shall be registered medical practitioners and
such other officers and servants as they think requisite The Joint
Board may pay their treasurer clerk medical officers and other officers
and servants such reasonable remuneration as they deem expedient and
every such treasurer clerk medical officer and other officer and servant
shall be removable by the Joint Board at their pleasure.

Mode of ad- Art. XIV.—(1) Persons shall be admitted into a hospital provided
mission into by the Joint Board in any of the following modes and not otherwise
hospitals. except with the consent of the Constituent Authorities viz.:—

- (A) By an order of the Joint Board or of a Constituent Authority ;
- (B) By an order of a medical officer of health of a Constituent
Authority ;
- (C) By an order of a medical officer appointed by the Joint Board ; or
- (D) By an order of a justice made under the provisions of
Section 124 of the Act with the consent required by that
section.

(2) If the board of guardians of the Conway Union and the
Joint Board agree for the reception into the hospital of persons in the
receipt of relief from that board of guardians any such person may be
admitted into the hospital in the manner and on the terms prescribed
in the agreement.

Powers rights Art. XV. For the purposes of this Order the following sections of
duties &c. of the Act the Public Health (Officers) Act 1884 and the Public Health
Joint Board. (Members and Officers) Act 1885 shall apply and the Joint Board
shall have exercise perform and be subject to all the powers rights
duties capacities liabilities and obligations of an Urban District Council
under those sections so far as the same are applicable viz.:—

Of the Act:—

Sections 122 123 131 and 132 relating to infectious diseases and
hospitals.

Sections 173 and 174 (except subsection 3) relating to contracts.

Sections 175 176 and 177 relating to purchase sale and letting
of lands.

Sections 179 to 181 relating to arbitration.

Sections 192 to 197 and Sections 205 and 206 (except so much
of Section 206 as requires the publication in a local newspaper
of the annual report) relating to officers provision of offices
and conduct of business of local authorities.

Sections 245 247 (as amended by the District Auditors Act 1879) A.D. 1910.
249 and 250 relating to audit.

Sections 251 253 and 254 and Sections 258 to 263 and 265 to
267 and Section 269 as amended by the Summary Jurisdiction
Act 1884 relating to legal proceedings.

Section 298 as to costs of Provisional Orders.

Sections 306 to 309 including miscellaneous provisions.

Of the Public Health (Officers) Act 1884:—

Section 2.

47 & 48 Vict.
c. 74.

Of the Public Health (Members and Officers) Act 1885:—

Section 2.

48 & 49 Vict.
c. 53.

Art. XVI. The Joint Board shall for the purpose of the sections
of the Act with regard to the "Prevention of epidemic diseases" be
a local authority so as to enable the Local Government Board by any
regulations under those sections to confer powers and to impose duties
on the Joint Board and so far as regards any powers so conferred and
any duties so imposed but nothing in this Order contained shall
prevent the Local Government Board from imposing any duties by
any regulations under the said sections on any Constituent Authority or
affect the powers of any Constituent Authority so far as the same may
be required to be exercised in pursuance of the said regulations.

Power of
Local
Government
Board to
make regu-
lations for
prevention
of epidemic
diseases.

Art. XVII. Until a hospital provided by the Joint Board is ready
for the reception of patients nothing in this Order shall take away
abridge or prejudicially affect any power vested in any Constituent
Authority with regard to the provision of a hospital or hospitals for
the use of the inhabitants of their district.

Saving hos-
pital powers
of Consti-
tuent Autho-
rities till
hospital
provided.

Art. XVIII. A copy of Section 132 of the Act shall be exhibited
in a conspicuous place at the principal entrance of the hospital or
hospitals.

Notice of pro-
visions as to
recovery of
cost of main-
tenance.

Art. XIX.—(1) All the expenses incurred by the Joint Board shall
be defrayed out of a common fund to which shall be paid the sums
received from the Constituent Authorities under Article XX. of this
Order and the sums recovered by the Joint Board from or repaid to
the Joint Board by or for patients.

Expenses of
Joint Board.

(2) To the common fund so far as the same is not provided by
the aforesaid payments each Constituent Authority shall contribute in
the proportion which the number of inhabitants in their Constituent
District bears to the total number of inhabitants of the Constituent
Districts and for the purposes of this Article the number of inhabitants
shall in each case be the number according to the returns of the last
census prior to the issue of precepts of the Joint Board for contribu-
tions from the Constituent Authorities.

A.D. 1910.
 —
Conway and
Penmaen-
mawr Order.
 Payment by
 Constituent
 Authorities
 in respect of
 patients in
 hospital.

Art. XX.—(1) For every patient received and treated in any hospital provided by the Joint Board a payment shall be made to the Joint Board by the Constituent Authority from whose district the patient has been received. The payment to be made in each case shall be at the rate of five shillings or such other sum as the Joint Board may with the consent of the Local Government Board fix in respect of each day during which the patient is in the hospital.

(2) The clerk to the Joint Board shall within twenty-eight days after the Thirty-first day of March and the Thirtieth day of September in each year transmit to the clerk to each Constituent Authority an account showing in respect of each patient received during the previous half-year into the hospital from the district of that authority after deducting any sums recovered by the Joint Board from or repaid to the Joint Board by or for that patient—

- (A) the name and address of the patient ;
- (B) the number of days in the half-year during which the patient has remained in the hospital ; and
- (C) the amount calculated according to the provisions of subdivision (1) of this Article and due from the Constituent Authority with particulars of any deduction from that amount on account of any sum recovered by the Joint Board from or repaid to the Joint Board by or for the patient.

For the purposes of paragraph (B) of this subdivision the day on which a patient is received in and the day on which a patient is discharged from a hospital shall be included in the number of days during which the patient has been in the hospital.

(3) The amount shown by the said account to be due shall be paid by the Constituent Authority from whose district the patient has been received into the hospital and shall be included in any precept which the Joint Board issue to the Constituent Authority under Section 284 of the Act stating the sums to be contributed by the Constituent Authority towards the common fund of the district and in case of default shall be recovered in like manner as the sums to be contributed towards the said common fund.

(4) For the purposes of Articles XIX. and XX. of this Order the Rural Districts of Conway and Glan Conway shall together constitute the Constituent District of which the Rural District Council of Conway are the Constituent Authority but the sums paid by the Conway Rural District Council in respect of these rural districts shall be apportioned

A.D. 1910.

—
*Conway and
Penmaen-
mawr Order.*

and charged to the two rural districts respectively as if each rural district were separately administered.

Inspection of
accounts.

Art. XXI. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose.

Art. XXII. A copy of the auditor's report and of the abstract of the accounts of the Joint Board when duly audited shall be sent by the Joint Board to each Constituent Authority.

Auditor's
report and
abstract of
accounts.

Art. XXIII. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or the affairs of the Rural District of Glan Conway cease to be temporarily administered by the Rural District Council of Conway or any repeal or alteration is made in the law affecting the United District or the Joint Board or a Constituent District or Constituent Authority in matters touching their relation to the United District or the Joint Board then and in every such case the Local Government Board may by order to be published as they direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

Power of Lo-
cal Govern-
ment Board
to adapt
provisions of
Order on
alterations of
Constituent
Districts.

Art. XXIV. In case of difference respecting any matter arising out of the provisions of this Order the difference except in any case otherwise herein provided for shall be referred to and be settled by arbitration in the manner provided by the Act and the provisions of the Act shall with the necessary modifications apply as if the Joint Board or a Constituent Authority as the case may be were a party within the meaning of those provisions.

Settlement of
differences.

Art. XXV. This Order may be cited as the Conway and Penmaen-
mawr Joint Hospital Order 1910.

Short title.

[Ch. lxxxvii.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 10) Act, 1910. 1 GEO. 5.]

A.D. 1910.

The SCHEDULE above referred to.

*Conway and
 Penmaen-
 nawr Order.*

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The Borough of Conway.	The Mayor Aldermen and Burgesses of the Borough of Conway acting by the Council.	1	The Mayor or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Deputy Mayor.	3
The Urban District of Penmaenmawr.	The Urban District Council of Penmaenmawr.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Urban District Council.	2
The Rural District of Conway. The Rural District of Glan Conway.	The Rural District Council of Conway.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council.	6

Given under the Seal of Office of the Local Government Board
 this Thirteenth day of June One thousand nine hundred
 and ten.

(L.S.)

JOHN BURNS President.
 H. C. MONRO Secretary.

WINDSOR AND EGHAM JOINT HOSPITAL
DISTRICT.

A.D. 1910.

Provisional Order for partially repealing a Confirming Act.

*Windsor
and Egham
Order.*

To the Windsor and Egham Joint Hospital Board ; —

To the Mayor Aldermen and Burgesses of the Borough of New Windsor ; —

To the Urban District Council of Egham ; —

To the Rural District Council of Windsor ; —

And to all others whom it may concern.

WHEREAS by the Windsor and Egham Joint Hospital Order 1903 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1903 (which Order and Act are herein-after respectively referred to as "the Order" and "the Confirming Act") the Borough of New Windsor the Rural District of Windsor and the Rural District of Egham were formed into a United District (herein-after referred to as "the United District") to be called the Windsor and Egham Joint Hospital District for the purposes of the provision maintenance and management for the use of the inhabitants of such districts of a hospital or hospitals for the reception of cases of infectious diseases and provision was made for the constitution of the Windsor and Egham Joint Hospital Board (herein-after referred to as "the Joint Board") ;

3 Edw. 7.
c. cxxxvi.

And whereas by the operation of the County of Surrey (Egham Urban District) Confirmation Order 1906 the Rural District of Egham ceased to exist and the area comprised therein was converted into and constituted an Urban District named the Urban District of Egham and all the powers duties liabilities and property attaching to or vested in the Rural District Council of Egham other than such as attached to or vested in them as the Parish Council of Egham were vested in transferred and attached to the Urban District Council of Egham ;

And whereas it is expedient that the Order should be repealed :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz. :—

38 & 39 Vict.
c. 55.

Art. I. Before the Thirtieth day of September One thousand nine hundred and ten the Joint Board shall out of the funds in their hands or to be raised by means of contributions from the District

Liabilities of
Joint Board
to be dis-
charged.

[Ch. lxxxvii.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 10) Act, 1910. 1 GEO. 5.]

A.D. 1910. Councils of the several Urban and Rural Districts now comprised in the United District discharge all liabilities attaching to the Joint Board.

*Windsor
and Egham
Order.*

Dissolution
of United
District and
abolition of
Joint Board.

Art. II. On and after the Thirtieth day of September One thousand nine hundred and ten the Confirming Act so far as it relates to the Order shall be repealed except so far as it may have been acted upon and the United District shall be dissolved and the Joint Board shall be abolished.

Custody of
documents.

Art. III. All books of accounts minutes of proceedings plans deeds papers and writings belonging to or under the control of the Joint Board shall be kept by and deposited with the Rural District Council of Windsor Provided that the Councils of the said Urban Districts and the ratepayers of either of the said Urban or Rural Districts shall at all reasonable times have the right of inspection and of taking copies of and extracts from any of the said documents.

Audit of
accounts.

Art. IV. The accounts of the Joint Board and of the committees and officers of the Joint Board shall be made up to the Thirtieth day of September One thousand nine hundred and ten and shall be audited in like manner and subject to the like incidents and consequences as if this Order had not been made:

Provided that the audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding:

Provided also that any sum certified by the district auditor to be due from any person shall be paid to the treasurer of the Borough of New Windsor and shall be apportioned by him between the District Councils of the several Urban and Rural Districts now comprised in the United District in the proportions specified in subdivision (2) of Article XIX. of the Order.

Short titles.

Art. V. This Order may be cited as the Windsor and Egham Joint Hospital Order 1910 and the Order and this Order may be cited together as the Windsor and Egham Joint Hospital Orders 1903 and 1910.

Given under the Seal of Office of the Local Government Board
this Fifth day of May One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

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